

23TRCV01956 23TRCV01956

County: los-angeles

Division: Civil Law and Motion

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Case Number: 23TRCV01956 Hearing Date: September 22, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

JUDITH

GRISELDA HERCULES,

Plaintiff,

Case No.:

23TRCV01956

vs.

[Tentative]

Denied

FOOD 4

LESS HOLDINGS, INC., a Delaware corporation; JOHN DOE, an individual; and

DOES 1 through 50, inclusive

Defendants.

Hearing

Date: September
22, 2026

Moving Parties: Defendant Ralphs Grocery dba Food 4
Less

Responding Party: Plaintiff Judith Griselda Hercules

HEARING: Motion for Summary
Judgment

The Court considered the moving,
opposition, and reply papers.

RULING

The Court denies the Motion for Summary
Judgment.

BACKGROUND

On June
16, 2026, Plaintiff Judith Griselda Hercules filed the Complaint against
Defendant Food 4 Less Holdings Inc., alleging causes of action for negligence
and premises liability.

On June 13, 2025,
Defendant Ralphs
Grocery dba Food 4 Less filed the Motion for Summary Judgment.

On May 28, 2026, Plaintiff filed the
Opposition.

On June 5, 2026, Defendant filed the
Reply.

On June 16, the Court continued the
Motion for Summary Judgment under Code of Civil Procedure § 437c(h).

No supplemental evidence has been
filed.

EVIDENTIARY OBJECTIONS

Defendant's
objections to the declaration of Brad Avrit

Sustained:

Overruled:
1-12

Plaintiff's
objections to the declaration of Evette Mckinney-Howard

Sustained:

Overruled:
1-2

Plaintiff's
objections to the declaration of Tashay Pugh

Sustained:

Overruled:
1-3

LEGAL STANDARD

The function of a motion for summary judgment
or adjudication is to allow a determination as to whether an opposing party
cannot show evidentiary support for a pleading or claim and to enable an order
of summary dismissal without the need for trial. (Aguilar v. Atlantic
Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section
437 subdivision (c) "requires the trial judge to grant summary judgment if all
the evidence submitted, and 'all inferences reasonably deducible from the
evidence' and uncontradicted by other inferences or evidence, show that there

is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal. App. 3d 367, 381-382.)

As to each cause of action, as framed by the complaint, the defendant moving for summary judgment or summary adjudication must satisfy the initial burden of proof by presenting facts to show “that one or more elements of the cause of action ... cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c(p)(2); see also Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

DISCUSSION

Causes

of action 1 and 2 – Negligence and Premises Liability.

The

elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages. (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.) Those who own, possess, or control property generally have a duty to exercise ordinary care in managing the property to avoid exposing others to an unreasonable risk of harm. (Annocki v. Peterson Enterprises, LLC (2014) 232 Cal.App.4th 32, 37.) The existence and scope of duty

are legal questions for the court. (Id. at p. 36.) If there is a condition that poses a danger to customers and others on the premises, the property owner is "under a duty to exercise ordinary care either to make the condition reasonably safe for their use or to give a warning adequate to enable them to avoid the harm." (Bridgman v. Safeway Stores, Inc. (1960) 53 Cal.2d 443, 446.)

Defendant argues that it is entitled to summary judgment because Plaintiff cannot establish that Defendant had actual or constructive knowledge of the alleged dangerous condition. A premises owner is not the insurer of a customer's safety, and liability attaches only where the owner had actual or constructive knowledge of the condition or could have discovered it through ordinary care. (Ortega v. Kmart Corp. (2001) 26 Cal.4th 1200, 1206.) Absent such knowledge, there is no liability, and the mere possibility of notice or a matter resting on speculation will not suffice. (Moore v. Wal-Mart Stores, Inc. (2003) 111 Cal.App.4th 472, 476.) Defendant argues that it exercised reasonable care through reasonable inspections of its premises, which need only occur at a reasonable frequency rather than continually. (Ortega, supra, 26 Cal.4th 1200, 1205.) Defendant contends the security video shows its courtesy clerk swept and inspected the area where Plaintiff fell, with no liquid present, and that Plaintiff fell roughly three minutes later, establishing reasonable care as a matter of law

Defendant further argues that Plaintiff cannot show actual or constructive notice in sufficient time to correct the condition. (Ortega, supra, 26 Cal.4th 1200, 1212.) The indispensable element of constructive notice is a showing that the condition existed for a sufficient period before the accident, and Plaintiff's inability to establish that duration is fatal to recovery. (State of California v. Superior Court (Rodenhuis) (1968) 263 Cal.App.2d 396, 400.) Although the duration question is ordinarily one of fact, a court may resolve it as a matter of law where the evidence does not support a reasonable inference that the condition existed long enough to be discovered through reasonable care. (Ortega, supra, 26 Cal.4th 1200, 1207.)

In opposition, Plaintiff argues that the Court must deny the motion because Defendant failed to carry its initial burden. Plaintiff contends Defendant has not met this burden because its own witnesses admitted liquid was on the floor, the footage does not clearly show liquid, and they could not determine when the liquid appeared, how long it existed, or whether the aisle was properly inspected, and because Defendant failed to produce the

Courtesy Clerk who allegedly performed the sweep.

Plaintiff also argues

that triable issues exist regarding the adequacy of the inspection and remediation. The mere occurrence of a sweep roughly three minutes before the fall does not establish reasonable care as a matter of law, because the adequacy and reasonableness of the inspection are factual questions for the jury. (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1205-1207.)

Plaintiff points to Tashay Pugh's admissions that she could not confirm a proper inspection, that her opinions rested on limited portions of the footage, and that customers entered the aisle after the sweep, and to Leslie Gill's testimony that the footage does not show liquid or establish when it appeared.

Plaintiff contends

that Defendant had actual or constructive notice and that the three-minute period is not dispositive. Store owners owe a duty of reasonable inspection commensurate with the risks involved, and California law rejects rigid time-based rules because whether a condition existed long enough to be discovered is a question of fact viewed on its own circumstances. (*Ortega*, supra, 26 Cal.4th 1200, 1205-1207.) Actual knowledge need not be shown where the evidence suggests the condition existed long enough to put the owner on constructive notice. (*Hatfield v. Levy Bros.* (1941) 18 Cal.2d 798, 805.) Plaintiff contends the duty was heightened in the high-traffic liquor section and relies on the declaration of safety engineer Brad P. Avrit, who found the contaminated floor measured as low as 0.15 on the coefficient of friction scale, well below the 0.50 safety threshold, that the liquid was visible on the footage roughly twenty-seven minutes before the fall, and that an employee passed the area with a dust mop yet failed to remediate the spill. (Avrit Decl., paras. 6-16.)

Last, Plaintiff

argues the surveillance footage does not conclusively resolve these disputes because Defendant's own witnesses admitted it is incomplete, unclear, and inconclusive, and because Evette McKinney was not present at the incident and drew her opinions from later review. Plaintiff notes that Defendant did not produce all camera angles or the post-incident photographs taken by Pugh, and concludes that the footage and testimony permit competing inferences regarding the condition of the floor, the adequacy of the inspection and remediation, and whether Defendant exercised reasonable care, so the disputes cannot be resolved on summary judgment.

Constructive notice

“The plaintiff need not show actual knowledge where evidence suggests that the dangerous condition was present for a sufficient period of time to charge the owner with constructive knowledge of its existence. Knowledge may be shown by circumstantial evidence which is nothing more than one or more inferences which may be said to arise reasonably from a series of proven facts.” (Ortega, supra, 26 Cal.4th 1200, 1206-1207.)

Here, Defendant has shown that the area was swept three minutes prior to the fall. (UMF 4-6.) Consequently, the Court finds that Defendant has passed its burden of showing that it did not have actual or constructive notice of the dangerous condition. (See Ortega, supra, 26 Cal.4th 1200, 1211.)

In response, Plaintiff has provided testimony from its expert, Brad Avrit, who reviewed the security footage and states that the dangerous condition appeared 27 minutes before Defendant's employee swept over it with a dust mop. (Avrit Decl. ¶ 14.) Avrit further states that a dust mop is not adequate to remedy a spill and that the employee who went over the spill with the dust mop did not further remedy the situation. (Avrit Decl. ¶ 14.) Thus, Plaintiff has shown a triable issue of material fact over whether the spill existed long enough and whether Defendant's failure to properly screen for and rectify spills gave Defendant constructive notice.

Therefore, the Court denies the Motion for Summary Judgment.